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Comment on FR Doc # 2025-02305

Submitter Information

Name: Anonymous Anonymous

General Comment

Concerns over copyright and AI from a small business owner. See attached file.

Attachments

Comments from a concerned American creator

March 15, 2025

From,
A concerned American citizen, professional artist, living in Littleton, CO.

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am an ordinary hard working American who runs a small art business creating art for everyday people, and clients who work in entertainment. Over the past 7 years, I've built up my craft from nothing and have been able to get work and make enough money to support my family. However, things have changed ever since AI companies started to come into play.

The AI systems made by big tech companies like OpenAI and Google not only threaten my small business, but actively use my own and others' art in their AI systems so they can make profit. And now with their recent demands to create special carve-outs in copyright law, things will get FAR worse for myself and others.

AI can only be produced by first training on work made by people, people like myself. My own work, and the work of COUNTLESS other American creators was taken by these companies and fed into their AI machines so they can make money off of our hard work. They consume our work, their AI spits it back out, and then they sell it back to OUR clients. Directly competing with us, and cutting us out of the marketplace. This has affected myself and others greatly. Jobs are fewer and far between since clients now have the option to use AI instead of commissioning art made by two real human hands.

These tech companies are now asking this administration to create exceptions, loopholes so that they can continue their practice of stealing American creator's copyrighted work. And they want to make it legal. They are suggesting that if an AI machine ingests and reproduces copyrighted work, it is somehow "fair use". They want to take advantage of us everyday people.

They want everything on the internet to be theirs for the taking with no consequences. These companies claim that if this administration does not allow them to rewrite the law to suit their agenda, it will stifle American innovation. That is a LIE.

It will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate.

If we want to protect American innovation then we need to protect AMERICAN CREATORS. **Please, do not create new copyright exemptions that allow big tech companies like OpenAI and Google to exploit and steal from us Americans without permission, compensation, or transparency. We are not massive tech companies, we are just people with average incomes. We cannot compete with a corporation that wishes to consume us.**

This administration's AI Action Plan should focus not on ensuring a fair marketplace with competition:

- The government should ensure that American creators decide when and where our work is used by AI systems. Some people will gladly give their work to AI companies! We just want to be ASKED FIRST instead of our work being taken without asking and without compensation for using our work.
- The AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to **create for small businesses is preserved**. Our work has immense economic value! Our work is so valuable in fact that big tech companies have been taking it for themselves- the entire reason I'm writing this. The value generated by our work should not be hoarded by a couple of companies. It should find its way back to the people whose work was used to train AI models.
- Lastly, the AI Action Plan should require **transparency** from big tech companies, requiring them to disclose what material is in their training datasets, and require a label on what content is AI generated.

I am not anti-technology or anti-AI. It is an incredibly useful technology for many things, but not for art. This tech is harmful to us concerned American artists. We should not sacrifice the hard work of countless Americans by rewriting copyright law to benefit big tech companies instead of the people who are the unwilling foundation of these companies' business practices.

If we, the American people, do not own our creations, and everything we put online will be stolen by tech giants, what will be the incentive to create? If talented, creative, innovative Americans create a new piece of computer code, an original visual design, or an ingenious new piece of music only to have it be IMMEDIATELY stolen by OpenAI and Google so that they can make a profit off of our hard work, why bother creating in the first place? We cannot make a living doing these things if we go down this path. If copyright law is molded to fit the agenda of tech giants then we are creating a future without art, without innovation. I want the people in this country to create without being afraid of a giant corporation taking their creations away from them. I want America to be a place of innovation, not stagnation.

I've said my piece. Thank you for the opportunity to comment on these important issues.